

The Bihar and Orissa Court-fees (Amendment) Act, 1922

Source: <https://indiankanoon.org/doc/79314150/>

[Skip to main content](#)

[Legal Document View](#)

[Tools for analyzing structure and cite text of judgments](#)

[Unlock Advanced Research with](#)

[PRISM](#)

[AI](#)

[Integrated with over 4 crore judgments and laws ? designed for legal practitioners, researchers, students and institutions](#)

-

[Know your Kanoon](#)

-

[Doc Gen Hub](#)

-

[Counter Argument](#)

-

[Case Predict AI](#)

-

[Talk with IK Doc](#)

-

...

[Upgrade to Premium](#)

[\[Cites](#)

[0](#)

[, Cited by](#)

[0](#)

[\]](#)

[State of Bihar - Act](#)

[The Bihar and Orissa Court-fees \(Amendment\) Act, 1922](#)

[BIHAR](#)

[India](#)

[The Bihar and Orissa Court-fees \(Amendment\) Act, 1922](#)

[Act 2 of 1922](#)

[Published on 21 August 1922](#)

[Commenced on 21 August 1922](#)

[\[This is the version of this document from 21 August 1922.\]](#)

[\[Note: The original publication document is not available and this content could not be verified.\]](#)

[The Bihar and Orissa Court-fees \(Amendment\) Act, 1922](#)

[Bihar and Orissa Act](#)

[2 of 1922](#)

[\[Dated 21st August, 1922\]](#)

[An Act to amend the Court-fees Act, 1870](#)

[Whereas it is expedient to amend the Court-fees Act, 1870 in its application to the Province of Bihar \[and Orissa\] in the manner hereinafter appearing;](#)

[It is hereby enacted as follows:-](#)

[1.](#)

[Short title, extent and commencement.](#)

[\(1\)](#)

This Act may be called the Bihar and Orissa Court-fees (Amendment) Act, 1922.

(2)

It extends to the whole of Bihar [and Orissa] including the Santhal Parganas.

(3)

It shall come into force on the twenty-fourth day of August, 1922.

2.

Amendment of Section 4.

- In paragraph 3 of Section 4 of the Court-fees Act, 1870 as amended by subsequent legislation and hereinafter called the Principal Act, for the word "two" shall be substituted the word "one".

3.

Amendment of Section 7.

- In clause (a) of Section 7(v) of the Principal Act, for the word "ten" shall be substituted the word "twenty" and in clause (b) of the said section for the word "five" shall be substituted the word "ten".

4.

Amendment of Section 17.

- In Section 17 of the Principal Act, after the words "of appeal" in both places where they occur the words "or of cross-objection" shall be inserted.

5.

Amendment of Section 18.

- In Section 18 of the Principal Act, for the words "a fee of eight annas" the words "a fee of twelve annas" shall be substituted.

6.

Amendment of Section 19.

- In item (viii) of Section 19 of the Principal Act, for the words "one thousand rupees" the words "two thousand rupees" shall be substituted.

7.

Amendment of Article 1 of Schedule I.

- In Article 1 of Schedule I of the Principal Act, for the entry in the first column the following entry shall be substituted, namely:-

(1)

Plaint, written statement, pleading, a set-off or counter-claim or memorandum of appeal or of cross-objection, not otherwise provided for in this Act, presented to any Civil or Revenue Court except those mentioned in Section 3;

(2)

For the "proper fees" set out in the third column of the said Schedule I and shown opposite Article 1 in Schedule A of this Act, the "proper fees" shown against them in the second column of the said Schedule "A" shall be substituted;

(3)

The proviso in Article 1 of the said Schedule I shall be omitted.

8.

Amendment of Articles 6, 7, 8 and 9 of Schedule I.

- For the "proper fees" set out in Schedule I of the Principal Act for Articles 6, 7, 8 and 9 and shown in Schedule A of this Act, the "proper fees" shown against them in the second column of the said Schedule A shall be substituted.

9.

Amendment of Article 11 of Schedule I.

- For the entries above the proviso in the second column and for the entries in the third column, in Article 11 of Schedule I of the Principal Act, the following shall be substituted, namely:-

"When the amount or value of the property in respect of which the grant of Probate or Letters is made exceeds two thousand rupees, on such amount or value up to ten thousand rupees,

Two percentum.

and

where such amount or value exceeds ten thousand rupees, on the portion of such amount or value which is in excess of ten thousand rupees up to fifty thousand rupees,

Three percentum.

and

when such amount or value exceeds fifty thousand rupees, on the portion of such amount or value which is in excess of fifty thousand rupees up to one lakh of rupees,

Four percentum.

and

when such amount or value exceeds a lakh of rupees, on the portion of such amount or value which is in excess of one lakh of rupees."

Five percentum.

10.

Amendment of Article 12 of Schedule I.

- For the entry in the second column of Article 12 of Schedule I of the Principal Act, and for the first paragraph in the third column of the said Article, the following shall be substituted, namely:-

"When the amount or value of any debt or security specified in the certificate under Section 8 of the Act, exceeds one thousand rupees on such amount or value up to ten thousand rupees,

Two percentum, and on the amount or value of any debt or security to which the certificate is extended under Section 10 of the Act, three percentum.

and

when such amount or value exceeds ten thousand rupees, on the portion of such amount or value which is in excess of ten thousand rupees up to fifty thousand rupees,

Three percentum, and on the amount or value of any debt or security to which the certificate is extended under Section 10 of the Act, four-and-a-half percentum.

and

when such amount or value exceeds fifty thousand rupees, on the portion of such amount or value which is in excess of fifty thousand rupees up to one lakh of rupees.

Four percentum, and on the amount or value of any debt or security to which the certificate is extended under Section 10 of the Act, six percentum.

and

when such amount or value exceeds a lakh of rupees, on the portion of such amount or value which is in excess of one lakh of rupees.

Five percentum, and on the amount or value of any debt or security to which the certificate is extended under Section 10 of the Act, seven-and-a-half per centum."

11.

Amendment of table of rates in Schedule I.

- For the table of rates of ad valorem fees annexed to Schedule I of the Principal Act, the table set forth in Schedule B of this Act, shall be substituted.

12.

Amendment of Schedule II.

(1)

In the first column of the said Schedule II after the words "memorandum of appeal" in Articles 5, 11, 17, 20 and 21 the words "or of cross-objection" shall be inserted.

(2)

For the "proper fees" set out in the said Schedule II, and shown in Schedule C of this Act, the "proper fees" shown against them in the second column of the said Schedule C shall be substituted.

13.

Exemption of certain Probates, Letters of Administration and certificates.

- Nothing in this Act, shall apply to any Probate, Letters of Administration or certificate under the Succession Certificate Act, 1889 in respect of which the fee payable under the law for the time being in force has been paid prior to the commencement of this Act, but which have not issued.

A

Proper fees set out in Schedule I of the

Principal Act

Proper fees to be substituted

Twelve annas

...

One rupee

Five rupees

...

Seven rupees and eight annas

Ten rupees

...

Fifteen rupees

Article 1

...

Fifteen rupees

...

Twenty-two rupees and eight annas

Twenty rupees

...

Thirty rupees

Twenty rupees

...

Thirty rupees

Twenty-five rupees

...

Thirty-seven rupees and eight annas

Four annas

...

Six annas

Article 6

...

Eight annas

...

Twelve annas

One rupee

...

One rupee and eight annas

Eight annas

...

Twelve annas

Article 7

...

One rupee

...

One rupee and eight annas

Four rupees

...

Six rupees

Article 8

...

The amount of the duty chargeable on the original

...

One-and-a-half times the amount of the duty chargeable on the original

Eight annas

...

Twelve annas

Article 9

...

Eight annas

...

Twelve annas

B

Table of Rates of ad valorem fees leviable on the institution of suits

When the amount or value of the subject-matter

exceeds

But does not exceed

Proper fee

Rs.

Rs.

Rs.

a.

p.

-

5

0

6

0

5

10

0

12

0

10

15

1

2

0

15

20
1
8
0
20
25
1
14
0
25
30
2
4
0
30
35
2
10
0
35
40
3
0
0
40
45
3
6
0
45
50
3
12
0
50
55
4
2
0
55
60
4
8
0
60
65
4
14
0
65
70

5
4
0
70
75
5
10
0
75
80
6
0
0
80
85
6
6
0
85
90
6
12
0
90
95
7
2
0
95
100
7
8
0
100
110
8
8
0
110
120
9
8
0
120
130
10
8
0
130
140
11

8
0
140
150
12
8
0
150
160
13
8
0
160
170
14
8
0
170
180
15
8
0
180
190
16
8
0
190
200
17
8
0
200
210
18
8
0
210
220
19
8
0
220
230
20
8
0
230
240
21
8

0
240
250
22
8
0
250
260
23
8
0
260
270
24
8
0
270
280
25
8
0
280
290
26
8
0
290
300
27
8
0
300
310
28
8
0
310
320
29
8
0
320
330
30
8
0
330
340
31
8
0

340
350
32
8
0
350
360
33
8
0
360
370
34
8
0
370
380
35
8
0
380
390
36
8
0
390
400
37
8
0
400
410
38
8
0
410
420
39
8
0
420
430
40
8
0
430
440
41
8
0
440

450
42
8
0
450
460
43
8
0
460
470
44
8
0
470
480
45
8
0
480
490
46
8
0
490
500
47
8
0
500
510
48
8
0
510
520
49
8
0
520
530
50
8
0
530
540
51
8
0
540
550

52
8
0
550
560
53
8
0
560
570
54
8
0
570
580
55
8
0
580
590
56
8
0
590
600
57
8
0
600
610
58
8
0
610
620
59
8
0
620
630
60
8
0
630
640
61
8
0
640
650
62

8
0
650
660
63
8
0
660
670
64
8
0
670
680
65
8
0
680
690
66
8
0
690
700
67
8
0
700
710
68
8
0
710
720
69
8
0
720
730
70
8
0
730
740
71
8
0
740
750
72
8

0
750
760
73
8
0
760
770
74
8
0
770
780
75
8
0
780
790
76
8
0
790
800
77
8
0
800
810
78
8
0
810
820
79
8
0
820
830
80
8
0
830
840
81
8
0
840
850
82
8
0

850
860
83
8
0
860
870
84
8
0
870
880
85
8
0
880
890
86
8
0
890
900
87
8
0
900
910
88
8
0
910
920
89
8
0
920
930
90
8
0
930
940
91
8
0
940
950
92
9
0
950

960
93
8
0
960
970
94
8
0
970
980
95
8
0
980
990
96
8
0
990
1000
97
8
0
1000
1100
105
8
0
1100
1200
112
8
0
1200
1300
120
8
0
1300
1400
127
8
0
1400
1500
135
0
0
1500
1600

142
8
0
1600
1700
150
0
0
1700
1800
157
8
0
1800
1900
165
0
0
1900
2000
172
8
0
2000
2100
180
0
0
2100
2200
187
8
0
2200
2300
195
0
0
2300
2400
202
8
0
2400
2500
210
0
0
2500
2600
217

8
0
2600
2700
225
0
0
2700
2800
232
8
0
2800
2900
240
0
0
2900
3000
247
8
0
3000
3100
255
0
0
3100
3200
262
8
0
3200
3300
270
0
0
3300
3400
277
8
0
3400
3500
285
0
0
3500
3600
292
8

0
3600
3700
300
0
0
3700
3800
307
8
0
3800
3900
315
8
0
3900
4000
322
0
0
4000
4100
330
0
0
4100
4200
337
8
0
4200
4300
345
0
0
4300
4400
352
8
0
4400
4500
360
0
0
4500
4600
367
8
0

4600
4700
375
0
0
4700
4800
382
8
0
4800
4900
390
0
0
4900
5000
397
8
0
5000
5250
412
8
0
5250
5500
427
8
0
5500
5750
442
8
0
5750
6000
357
8
0
6000
6250
472
8
0
6250
6500
487
8
0
6500

6750
502
8
0
6750
7000
517
8
0
7000
7250
532
8
0
7250
7500
547
8
0
7500
7750
562
8
0
7750
8000
577
8
0
8000
8250
592
8
0
8250
8500
607
8
0
8500
8750
622
8
0
8750
9000
687
8
0
9000
9200

652
8
0
9250
9500
667
8
0
9500
9750
682
8
0
9750
10000
697
8
0
10000
10500
720
0
0
10500
11000
742
8
0
11000
11500
765
0
0
11500
12000
787
8
0
12000
12500
810
0
0
12500
13000
832
8
0
13000
13500
855

0
0
13500
14000
877
8
0
14000
14500
900
0
0
14500
15000
922
8
0
15000
15500
945
0
0
15500
16000
967
8
0
16000
16500
990
0
0
16500
17000
1012
8
0
17000
17500
1035
0
0
17500
18000
1057
8
0
18000
18500
1080
0

0
18500
19000
1102
8
0
19000
19500
1125
0
0
19500
20000
1147
8
0
20000
21000
11,77
8
0
21000
22000
1207
8
0
22000
23000
1237
8
0
23000
24000
1267
8
0
24000
25000
1297
8
0
25000
26000
1327
8
0
26000
27000
1357
8
0

27000
28
1387
8
0
28000
29000
1417
8
0
29000
30000
1447
8
0
30000
32000
1477
8
0
32000
34000
1507
8
0
34000
36000
1537
8
0
36000
38000
1567
8
0
38000
40000
1597
8
0
40000
42000
1627
8
0
42000
44000
1657
8
0
44000

46000
1687
8
0
46000
48000
1717
8
0
48000
50000
1747
8
0
50000
55000
1785
0
0
55000
60000
1822
8
0
60000
65000
1860
0
0
65000
70000
1897
0
0
70000
75000
1935
0
0
75000
80000
1972
8
0
80000
85000
2010
0
0
85000
90000

2047
8
0
90000
95000
2085
0
0
95000
1,00,000
2122
8
0
1,00,000
1,05,000
2160
0
0
1,05,000
1,10,000
2197
8
0
1,10,000
1,15,000
2285
0
0
1,15,000
1,20,000
2272
8
0
1,20,000
1,25,000
2310
0
0
1,25,000
1,30,000
2347
8
0
1,30,000
1,35,000
2385
0
0
1,35,000
1,40,000
2422

8
0
1,40,000
1,45,000
2460
0
0
1,45,000
1,50,000
2497
8
0
1,50,000
1,55,000
2535
0
0
1,55,000
1,60,000
2572
8
0
1,60,000
1,65,000
2610
0
0
1,65,000
1,70,000
2617
8
0
1,70,000
1,75,000
2685
0
0
1,75,000
1,80,000
2722
8
0
1,80,000
1,85,000
2760
0
0
1,85,000
1,90,000
2797
8

0

1,90,000

1,95,000

2135

0

0

1,95,000

2,00,000

2172

8

0

2,00,000

2,05,000

2910

0

0

and the fee increases at the rate of thirty-seven rupees eight annas for every five thousand rupees or part thereof, for example, when the amount or value of the subject-matter exceeds-

Rs.

Rs.

3,00,000

.....

3660

4,00,000

.....

4410

5,00,000

.....

5160

6,00,000

.....

5910

7,00,000

.....

6660

8,00,000

.....

7410

9,00,000

.....

8160

10,00,000

.....

8910

11,00,000

.....

9660

C

[See Section 12(4) of the Bihar and Orissa Court-fees (Amendment) Act, 1922.]

Proper fees set out in Schedule II of the

Principal Act

Proper fee to be substituted

One anna

...

Two annas.

Eight annas

...

Twelve annas.

Article 1...

One rupee

...

One rupee and eight annas.

Two rupees

...

Three rupees.

Article 1-A...

Twelve annas in addition to any fee levied on the application under clause(a), clause (b) or clause (d) of Article 1 of the Schedule.

...

One rupee in addition to any fee levied on the application under clause (a), clause (b) or clause (d) of Article 1 of this Schedule.

Eight annas

...

One rupee.

Article 10...

One rupee

...

Two rupees.

Two rupees

...

Three rupees.

Eight annas

...

One rupee.

Article 11...

Two rupees

...

Four rupees.

Article 12...

Five rupees

...

Ten rupees.

Article 14...

Five rupees

...

Ten rupees.

Articles 17,18 & 19...

Ten rupees

...

Fifteen rupees.

Articles 20 & 21...

Twenty rupees

...

Thirty rupees.

Related AI tags, queries and research notes

Translation